IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

ITEM No. 121
(CAA)-40(PB)/2018

IN THE MATTER OF:
Space Power Controls Pvt. Ltd. with
NKA Financial Services Pvt. Ltd. .... Applicant/petitioner

Order under Section 230(1)-232

Order delivered on 01.05.2019

Coram:
CHIEF JUSTICE (RTD.) M. M. KUMAR
HON'BLE PRESIDENT

SH. S. K. MOHAPATRA
HON'BLE MEMBER (TECHNICAL)

PRESENTS:

For the Petitioner	Mr. Mukesh Sukhija, Adv.
For the RD	Mr. C. Balooni, CP
For the OL	Mr. Amish Tandon & Mr. Ayush Batra, Advs.
For the ITD	Ms. Lakshmi Gurung, Standing Counsel for Income Tax Department with Ms. Easha Kadian, Adv.
For the RBI	Mr. Kanhaiya Lal, Manager, RBI, DNBS

ORDER

Mr. Kanhaiya Lal, Manager, RBI, DNBS has filed a copy of the letter dated 15.02.2019 wherein no objection for the scheme of merger/amalgamation in respect of petitioner company has been raised. The letter is taken on record. Ld. Counsel for the petitioner giving detail objection raised by RD has filed an undertaking in its affidavit dated 11.01.2019 and in para 3(b) it is stated that the transferee company undertakes to comply with the directions of Hon'ble Tribunal in that regard and shall pay the fee for increase in authorised capital if so, directed by the tribunal. OL has no objection. However, Income Tax Department has stated in its status report that

the approval to the scheme shall remain subject to the provisions of Section 72(a).

Arguments heard. Order reserved.

Sd/-

(M.M.KUMAR)
PRESIDENT

Sd/-

(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

01.05.2019
Ritu Sharma